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Courts must earn confidence, not demand faith
— *Govind Manoharan*
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There is no sincerer love than the love of food.
— *George Bernard Shaw*

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IN 1932

BECAUSE THE TRUTH INVOLVES US ALL

On right to internet, Court ruling isn't enough

THE SUPREME Court, on October 15, delivered a ruling that is significant for two reasons: It tightened the rules on child sexual exploitation and abuse material online, and it declared access to and use of the internet a fundamental right under Articles 19 and 21 of the Constitution. These provisions guarantee the freedom of speech and expression and the right to life and personal liberty. On both aspects of the ruling, however, much depends on whether they remain on paper, and how they translate into practice. On this count, both invite serious questions.

Citing gaps in compliance with existing statutory norms under the Information Technology Rules, the bench directed the government to build a national database of digital identifiers for child abuse material. It requires platforms to remove "known origin" matches from the database, even without verifying them. Intermediaries have been asked to judge content by its propensity to facilitate exploitation, even where it is not explicit. The Court also suggested hefty fines on intermediaries that don't comply with rules to remove such content. To be sure, child safety is an urgent issue and needs more proactive state intervention. However, it will take a meticulous institutional architecture to govern the use and misuse of databases, not just the Court's assurance.

The SC's recognition of access to the internet as a fundamental right only calls attention to the extremely fraught context it comes in — restricting the internet is often the first weapon in the state's toolkit for policing. In principle, elevating it as a fundamental right allows a citizen to directly move the SC for its enforcement and confines future laws on screen time curbs within narrowly defined and constitutionally permissible limits. But the real test lies in how rights are realised. Scholars have long pointed to an anomaly — the Court expands Article 21 faster than it steps in to secure the rights guaranteed under it. Citizens may be told they have a right to a speedy trial or clean air or safe roads, but when the state fails to deliver, they cannot invoke those rights in court meaningfully. Saying that access to the internet is part of the fundamental right to freedom of speech and expression, therefore, is not enough. That recognition must be put to work when internet shutdowns are imposed unreasonably and disproportionately — that is when the Court must intervene to restrain the state instead of kicking the can down the road.

Involve people, focus on what ails Yamuna

REPORTS OF thousands of dead fish floating in the Yamuna near Burari in Delhi last week were a warning of the river's poor health. Experts have not conclusively established the cause of the deaths, but point to possible industrial effluents, low dissolved oxygen levels and inadequate environmental flows. The Delhi government's "Chalo Yamuna" clean-up drive is, therefore, timely. On Sunday, Chief Minister Rekha Gupta and other BJP leaders joined volunteers in clearing waste from 70 ghats, while appealing to residents to stop discarding plastic, broken idols and religious offerings into the river. Involving the public in restoring the Yamuna's health is welcome. But the fish deaths, reported from a stretch upstream of the Wazirabad barrage, generally considered relatively cleaner than much of the river flowing through Delhi, underline the scale of the Yamuna challenge. The episode should remind the government to stay the course in addressing the river's chronic problems.

Since assuming office last year, the Rekha Gupta government has announced investments in sewage treatment and drainage. However, even by conservative estimates, close to 200 million litres of sewage continues to flow untreated into the Yamuna every day. At least seven sewage treatment plants failed to meet prescribed water-quality standards in September, according to the Delhi Pollution Control Committee's latest report. The interceptor drain project, intended to capture sewage from drains in the city's slum clusters before it enters the larger drains that empty into the Yamuna, has also been dogged by fragmented responsibilities. These shortcomings point to a familiar problem of river rejuvenation projects — investments not translating into adequate results on the ground.

An approach centred on sewage treatment will not be enough to cleanse the Yamuna. The river needs adequate clean water flows to dilute residual pollutants. Drains carrying urban sewage and industrial effluents from neighbouring areas can undermine efforts in Delhi. Pollution control authorities in the Capital cannot, therefore, clean the river in isolation. The Centre must bring Delhi, Haryana and Uttar Pradesh together to set common pollution targets, share data and establish clear lines of accountability. Environmental flows, industrial discharge and sewage treatment need to be addressed as parts of the same problem. The Chalo Yamuna campaign can encourage residents to treat the river with greater care. But public participation will need to be matched by sustained investment, scientific oversight, diligent enforcement and cooperation among the states that share the river.